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Athens, 16-04-2024
Protocol No.: 1163

DECISION 15/2024

The Hellenic Data Protection Authority (hereinafter referred to as the "Authority") convened at its headquarters on Tuesday, 29-06-2023, at 10:00, following an invitation from the President, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos, Konstantinos Lamprinouidakis, Charalampos Anthopoulos, Christos Kalloniatis, Aikaterini Iliadou, and Grigorios Tsolias, as the rapporteur. Present, without voting rights, were Stefania Plota, special scientist - lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With complaint No. G/EIS/3859/21-05-2018, A (hereinafter referred to as the "complainant") appealed to the Authority against the company Google Inc. (hereinafter referred to as "Google" or "the company") for failure to satisfy the right to erasure (right to be forgotten) of results appearing in Google's search engine based on the complainant's name. Specifically, the complainant submitted his request dated ... to the data controller Google Inc. with reference number ... for the deletion from the search results of the Google Search engine of the following links (total of 55), in accordance with Article 13 par. 1 of Law 2472/1997, and the activation of procedures to make future access to this data impossible.

In particular, in his request to the company, the complainant claimed that following a search in the Google Web Search engine based on his name, "namely a) B, b) C, c) D, and d) E, the following list of results appears, containing links to published third-party websites, which contain information related to my person, which refer to sensitive personal data, and specifically: to highly inaccurate information concerning the investigation against me, my arrest, and my subsequent temporary detention by F, for the offense of ..., which took place from ... until ..., when I was released. The aforementioned sensitive personal data have for a very long time (over ... years) become absolutely inaccurate, and in any case, there is no longer any valid reason for the continuation of this harmful processing for my private, professional, and social life, particularly aggregated by Google, as it grossly violates my personality and infringes upon my right to informational self-determination, and indeed with absolutely inaccurate and non-compliant with the Principle of Proportionality sensitive personal data. Specifically, from ... to ... I worked as ... at ..., specifically in the office of H. In ..., S, cousin of Z.... Of course, I was not aware that S was a relative of the aforementioned ..., nor, much less, that the real ... was him, and that the money was the product of In the spring of ..., the Z scandal broke out in O, with arrests, and extensive coverage by Greek and International media. H seized the aforementioned ..., and informed the At the same time, an internal investigation was conducted and concluded that neither ... nor I violated the rules, and therefore that I committed no offense. Due to the multiple judicial requests of ... to Y, for ..., F initiated its own investigation for any potential responsibilities During the investigation, they interrogated S, who falsely testified that H and I allegedly knew that Z was hiding behind him. The visits of ... to Athens, from ... onwards, leaked to the Greek press and the first articles referring to me, as allegedly involved ..., appeared on On ..., F initiated an investigation against me, on suspicion of On ..., it was decided that I should be temporarily detained, on the grounds of risk. On ..., many articles were published referring to my temporary detention. On ..., I was released. From ... until today: 1) I have not been convicted, nor have any charges been brought against me, neither in Y, nor in O, nor in any other country in the world, as it appears that the case is heading towards filing; 2) I have started working again, and indeed in a regulated position in To obtain the license, the ... committee ... conducted a thorough investigation and concluded that I am fit

and proper to work in a regulated position." Furthermore, the complainant lists the following links, for which he requests deletion from the search results of Google Search and the activation of procedures to make future access to this data impossible:

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The company sent an automated email message on the same day confirming that it had received the request and that it would process it as soon as possible, depending on the volume of messages received, and on ... responded to the complainant that "after weighing the rights and interests related to the content in question, taking into account factors such as the individual's role in public life, Google LLC decided not to remove this content. At this specific moment, Google decided not to take any action regarding the said links (URLs)." Following the company's response, the complainant submitted the complaint under consideration to the Authority, in which, in addition to what was mentioned above in his application to the company, he claimed that, regarding the company's response, Google thus "on the one hand violated the CJEU decision of 13.05.2014 for Google Spain SL & Google Inc against Agencia Espanola De Proteccion De Datos & Mario Costeja Gonzalez C-131/12, and on the other hand did not properly assess my request, along with the documents submitted in support, and thus did not sufficiently justify its response. Specifically, it did not take into account that the contested websites refer to sensitive personal data about me," reiterating the factual circumstances he had presented in his application to the company, adding that "the contested response is in complete contradiction with the fact that for the URLs, a) ... and b) ..., which also concerned the same information, the processing of which is carried out with the other URLs, the responsible website ... decided to delete them from its databases and remove them from Google search results."

The Authority, in the context of examining the above complaint, summoned the companies Google LLC (formerly Google Inc), as the operator of the Google search engine, and Google Hellas with document no. Γ/ΕΞ/5232/26-07-2019, to provide their views on the allegations, fully justifying their negative response for each link separately. Google LLC responded to the Authority with document no. Γ/ΕΙΣ/5976/03-09-2019 that following a relevant review, it found that eleven (11) links included in the complainant's deletion request refer users to websites that either do not display content or display content that does not mention the complainant's name and that it has taken actions to delete these links from the results of the Google Web Search service. Regarding the other links, the company stated that the right to be forgotten has been defined under the decision "Google Spain and Inc. v. Agencia Espanola De Proteccion de Datos (AEPD) and Mario Costeja Gonzales" C-131/12 ("Costeja decision") and the Guidelines of the Article 29 Working Party, as the right of an individual to cease information related to them from being linked to their name through the results list that emerges following a search conducted based on their name, when at that specific moment the information "is inappropriate, is or has ceased to be relevant to the matter at hand, or is excessive in relation to the aforementioned purposes or the time that has elapsed," and this decision accepts that the public interest prevails when the data subject plays a role in public life and the contested information relates to that role. The company refers to the criteria set out as questions in the Guidelines, namely "what role does the data subject play in public life," "Do the data concern the professional life of the data subject," "Are the data related to the professional life of the person excessive. Is the data subject still active in the same profession," "Are the data accurate," "Do the data concern criminal offenses," and for the case under consideration, it concluded that "the contested publications concern the prosecutorial investigation conducted by ... against the complainant, as well as his temporary detention for the offense of Considering that this information has been published for ... years and/or even more recently and that it concerns, on the one hand, the professional life of the data subject as ... and on the other hand, the criminal investigation conducted against him and his temporary detention.

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for the particularly serious offense of ..., facts which he himself acknowledges, we consider that the relevant links (URLs) are directly related to the role that the data subject plays in public life, justifying

the legitimate interest of the public to access the information contained in the said articles. It thus becomes indisputable that the data subject plays a role in public life and that the relevant articles contain information and news related to this role. Furthermore, the complainant, despite claiming that the relevant information is not accurate, has not provided any information, evidence, or document to prove the inaccuracy of the relevant information, which is necessary in this case given that the complainant not only does not dispute but additionally admits the fact of his detention and the related criminal investigation, concluding that for forty-four (44 links) included in the complainant's deletion request, deletion is not permissible, as, "following a balancing of the rights and interests related to the content in question, the relevant information is recent, relevant, and pertains to the profession of the data subject. The 'youthfulness' of the information is in itself sufficient to demonstrate that the complainant cannot lawfully invoke the right to be forgotten concerning the said articles. The relevance to the complainant's profession, the failure to prove the inaccuracy of the information, and the role that the complainant plays in public life, are merely additional elements supporting the position that deletion of the relevant links from search results is not permissible." Subsequently, the complainant submitted to the Authority the supplementary email with reference number G/EIS/1112/27-1-2022, in which he lists the following thirty (30) links for which he requested deletion from the search engine results, as well as the supplementary emails with reference numbers G/EIS/7891/10-6-2022 and G/EIS/8394/29-6-2022, with attached copies of emails in which the company responds to his earlier requests:

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Following these documents, the Authority, with its letter number G/EX/340/09-02-2023, called on the

company to reconsider the complainant's requests and to provide clarifications. The company responded with its letter number G/EIS/1676/07-03-2023, in which it states, among other things, that, following its responses to the complainant's requests mentioned in the above supplementary documents: "the Complainant limited the from ... email message [...] to thirty (30) links," however, "does not explain the reasons for requesting the deletion of the [...] links, nor clarifies that he refers to the deletion of the links from the list of results that appears after searching for his name in the Google search engine." Subsequently, the company grouped the remaining links into two categories (A, B): "the links in category A (1-18) 'refer to websites that do not display content, or display content that does not include the name of the complainant, therefore, the Company will proceed with actions to delete them from the list of results of the search engine, which appear after searching for the name of the Complainant':

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18. ...

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Regarding the links in category B (1-12), the company, following a relevant assessment, concludes that deletion is not permissible in the case at hand because "the content of all the links numbered B 1-12, which continue to appear in the search engine results based on the name of the Complainant, pertains to offenses that the Complainant has been involved in under his professional capacity as ..., is recent and accurate. There is, therefore, a legitimate interest of the public to continue to be informed about this content" and that "the right to be forgotten of the Complainant cannot be established," for the following links:

1. ...
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8. ...
9. ...
10. ...
11. ...
12. ...

In light of the above, the Authority, with letters numbered G/EX/1231/15-05-2023 and G/EX/1230/15-05-2023, called the aforementioned companies and the complainant, as legally

represented, to attend, via videoconference, the plenary session of the Authority on Tuesday, 23-05-2023, in order to discuss the complaint in question. At the above session, the complainant's attorney Ioannis Apatsidis (AMDSA ...) and on behalf of the company Google LLC, Charikleia Daouti (AMDSA ...) and Evangelia Tsirigoti (AMDSA ...) were present. During this session, the attendees presented their views and were given a deadline to submit written statements, the

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which were submitted by the complainant and the company Google LLC with the reference numbers Γ/ΕΙΣ/4322/09-06-2023

and

Γ/ΕΙΣ/4341/09-06-2023

documents,
respectively.

In the post-hearing memorandum submitted to the Authority, the complainant stated that various posts concerning him remain published, as evidenced by Google's latest response, which failed to convincingly explain why they remain published, on the one hand, without any criminal case being formed against him in Greece, and on the other hand, when, in any case, his presumption of innocence is violated, without any irrevocable conviction against him for any offense, and when the sensitive information in question does not even concern a public figure (of absolute or at least relative relevance), but a simple ..., even lower in the hierarchy.

In its post-hearing memorandum submitted to the Authority, the company states that the complainant, with the email dated Γ/ΕΙΣ/1112/27-01-2022 that he sent to the Authority, limited his initial request by asking for the deletion of thirty (30) links (the link ... is cited by the complainant twice) and following the discussion of the complaint before the Authority, it emerged that of these links, the following nine (9) continue to appear as results of the Google search engine based on the complainant's name, to which the company's memorandum is limited:

- a. ...
- b. ...
- c. ...
- d. ...
- e. ...
- f.
- ...
- g. ...
- h. ...
- i. ...

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The company states regarding the above links that each post is directly related to the role the complainant plays in public life, as a professional and involved in particularly serious criminal offenses, justifying the public's legitimate interest in accessing the information contained in the said article. The information is recent, relevant to public interest, and accurate, and the complainant admits to the factual circumstances mentioned in the above link concerning his professional life and his pre-trial detention, and his legal representative acknowledged before the Authority during the discussion of the complaint, following a question from the company, the fact that the criminal proceedings before the ... have not yet been completed. Therefore, there is a case where the right to public information regarding accurate information concerning a criminal case may outweigh the right to deletion of the data subject (see Guidelines 5/2019, p. 14, Chapter 2.1).

Finally, the company points out that the links f', g', h' and i' from the above did not display content at the time of submission of the document dated Γ/ΕΙΣ/1676/07-03-2023 from Google and, therefore, in that document, the company had informed that it would proceed with actions to delete them from the search engine results list, as these links were inactive; however, subsequently and following that document, the publishers of the websites of these links reposted their content, which includes the

complainant's name, and their deletion did not take place.

The Authority, after examining all the elements of the file and those arising from the hearing process before it, the memoranda and statements of the parties, having heard the rapporteur and the clarifications from the assistant rapporteur, who was present without voting rights, after thorough discussion, **CONSIDERED ACCORDING TO THE LAW**

1. Since, from the provisions of Articles 51 and 55 of the General Data Protection Regulation 2016/679 (GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise

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the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data.

2. Whereas Google LLC, based in the United States of America, informed the Authority with its letter no. Γ/ΕΙΣ/10060/14-12-2018 that, although Google Ireland will be the data controller for user data collected and processed when users interact with Google's services—including data collected through the Google search engine, where users choose to store activity data or search history in their accounts—Google LLC will continue to be the data controller for the classified content (index) of the Google search engine and manage the deletion process within the framework of the right to be forgotten. Therefore, in the case under consideration, the purpose and means of processing to satisfy the right to deletion (to be forgotten), according to Article 17 of the GDPR, are fully determined by Google LLC, as it states, whose establishment is located outside the European Union. Consequently, although this specific activity concerns data subjects located within the territory of the Union, since Google LLC does not have a main establishment in the Union for the activity under consideration, the "one-stop-shop" mechanism established by the GDPR, as per Articles 56 and 60, does not apply, and thus, according to the provisions of Articles 55 paragraph 1, 2 paragraph 1, and 3 paragraph 2 of the GDPR and 13 paragraph 1 subparagraph (z) of Law 4624/2019, the Authority has jurisdiction to address the complaint of A regarding the violation of the right to deletion.

3. Whereas the activity of Google Hellas/Athens (GOOGLE HELLAS Internet Applications Single Member Limited Liability Company) is the provision of marketing services to Google Ireland, the complaint regarding the rejection of the request for deletion of links in the context of satisfying the right to be forgotten is examined only concerning Google LLC as the data controller of the classified content (index) of the Google search engine.

4. Whereas according to Article 17 paragraph 1 of the GDPR, "the data subject has the right to request from the data controller the deletion of personal data concerning them without undue delay, and the data controller is obliged to delete personal data without undue delay if one of the following grounds applies: a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed, [...], c) the data subject objects to the processing pursuant to Article 21 paragraph 1 and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21 paragraph 2, [...]." In paragraph 3 of the same article, it is stated that "paragraphs 1 and 2 do not apply to the extent that the processing is necessary: a) for the exercise of the right of freedom of expression and information [...]."

5. Whereas according to the aforementioned Article 17 of the GDPR, as interpreted in substance by the Guidelines 5/2019 of the EDPB¹, the data subject has the right to request from the data controller the deletion of personal data concerning them without undue delay, and the data controller is obliged to delete personal data without undue delay if one of the grounds mentioned in Article 17 of the GDPR applies. The EDPB emphasizes² that, in cases where the deletion request is made for the first reason, namely when the data subject requests the deletion of content from search results, when the personal data of the data subject are no longer necessary in relation to...

¹ Guidelines 5/2019 of the European Data Protection Board on "the criteria governing the right to be forgotten under the GDPR in the context of search engines"

² See Guidelines 5/2019, op. cit., paragraph 19

With the purposes in mind, the search engine must ensure a balance between the protection of privacy and the rights of Internet users when accessing information. In particular, it should be assessed whether, over time, personal data has become outdated or has not been updated. Furthermore, the GDPR states that in the event that the deletion request is made for the third reason, namely that the data subject objects to the processing, then the GDPR provides stronger guarantees to data subjects than Directive 95/46, because the right to object under the GDPR does not limit the grounds on which data subjects can request deletion under Article 17(1) of the GDPR. The data subject may object to the processing "on grounds relating to his or her particular situation," without needing to demonstrate "compelling and legitimate grounds," as was required by Directive 95/46. The GDPR shifts the burden of proof and provides a presumption in favor of the data subject, obliging the data controller (in this case, Google) to prove the "compelling and legitimate grounds" that make the processing absolutely necessary (Article 21(1) GDPR). Consequently, when a search engine provider receives a deletion request today based on the particular situation of the data subject, it must delete the personal data in accordance with Article 17(1)(c) of the GDPR, unless it can demonstrate that there are "compelling and legitimate grounds" for including the specific search result, which in conjunction with Article 21(1) constitutes "compelling and legitimate grounds (...)" which override the interests, rights, and freedoms of the data subject."

3 See Guidelines 5/2019, op. cit., para. 27

4 See Guidelines 5/2019, op. cit., para. 30

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6. Since, according to the case law of the Court of Justice of the European Union, the data subject has the right to have information relating to him or her no longer linked to his or her name through the list of results generated following a search conducted based on the name of a natural person, and furthermore, such a search may result in users being able to obtain through the list of results a systematic overview of the information available online concerning that person, which provides users with the ability to form a more or less detailed profile of the data subject, which pertains to the private life of the data subject.

7. Since, moreover, according to the case law of the Court of Justice of the European Union, it is incumbent upon the person requesting the deletion of links, in the event of invoking inaccuracies in the classified content, to prove the manifest inaccuracy of the information contained in that content by providing evidence that can reasonably be expected to be available to them, in light of the circumstances of the specific case, in order to demonstrate this manifest inaccuracy.

8. Since further, according to the case law of the Court of Justice of the European Union, "although the rights of the data subject protected by Articles 7 and 8 of the Charter generally prevail over the legitimate interest of potential Internet users in accessing the information in question, this balancing may depend on the critical circumstances of each case, in particular the nature of the information in question and its sensitive character for the private life of the data subject, as well as the public interest in having that information, an interest that may...

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It is differentiated accordingly, among other things, by the role that the data subject plays in public life [decisions of May 13, 2014, Google Spain and Google, C-131/12, EU:C:2014:317, para. 81, as well as of September 24, 2019, GC et al. (Removal of links to sensitive data), C-136/17, EU:C:2019:773, para. 66]. 63. Specifically, when the data subject plays a role in public life, they must exhibit a greater degree of tolerance, given that they inevitably and knowingly expose themselves to public scrutiny (cf. ECHR decision of October 6, 2022, Khural and Zeynalov v. Azerbaijan, CE:ECHR:2022:1006JUD005506911, § 41 and the case law cited therein)9.

9. Because according to the case law of the Authority, the reasons for submitting a request for the removal of a link to the search engine service provider, such as Google, must be substantiated10.

10. Because from the initial fifty-five (55) links contained in the request dated ... by the complainant for their removal as results from the Google search engine based on their name, with the supplementary

(ref. no. Γ/ΕΙΣ/1112/27-01-2022) email submitted by the complainant to the Authority, their request concerned thirty (30) links, as mentioned above. In its response document (ref. no. Γ/ΕΙΣ/1676/07-03-2023), the company stated that it would remove eighteen (18) of those thirty (30) links (as above category A), as they refer to websites that do not display content or display content that does not include the complainant's name, while regarding the remaining twelve (12) (as above category B), it concluded that in this case there is no established right for the complainant's removal. However, in the memorandum submitted by the company to the Authority after the hearing (ref. no. Γ/ΕΙΣ/4341/09-06-2023), it stated that of these links, it was found that the aforementioned nine (9) links with numbering from α to θ still appear as results for which there is no established right for the complainant's removal and it will not satisfy this request.

11. Because, upon examination of the file's elements, it was found that the links under the above points σ, ζ, η, and θ, although in the document with ref. no. Γ/ΕΙΣ/1676/07-03-2023 they were included in category A (as above numbering 1-18), meaning that they do not display content or display content that does not include the complainant's name and the company would proceed to remove them from the results list, subsequently the company adds them to the last nine (9) links, as their content was reposted by the publishers of the websites, the removal of which as results in the search engine the company denies.

12. Because, from the search conducted by the Authority on 04-05-2023 and on 26-06-2023 in the Google search engine with the criteria of the names "A", "B", "Γ", and "Δ", regarding all the links contained in the complaint under examination, the content of which refers to the involvement of the complainant, as ..., in ... offenses, the following ten (10) links were found:

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- 19

13. Because a data subject, although not a public figure¹¹, may be considered, due to their professional activity, to have some role in public life, as this criterion is broader than that of "public figure," and in this category usually fall executives of entities that play a significant role in the business life of the country, in the sense that there is public interest in seeking information about their activities. Indicatively, politicians, senior public officials, entrepreneurs, and those practicing legally protected (regulated) professions are usually considered to have a role in public life. However, in the case under examination, the complainant is not "...", as mentioned in the publications under examination, that is ..., holding ..., who either performs executive duties or has delegated management to other executives, according to the definition of the term, but Therefore, there is no evident interest of the

reading public specifically in their person.

14. Because, in addition to the finding that the complainant does not constitute a public figure, the links in question contain publications from the years ... and ..., except for the link under point 10 above (see para. 12) which pertains to a publication from the year In these publications, the alleged involvement of the complainant in ... is mentioned, but this is not confirmed by the elements of the file, while a period of at least ... years has also elapsed, rendering the information in question outdated and irrelevant.

15. Because the information contained in the links under examination cannot be characterized as information that is of current interest to the public, according to the above. Following a balancing between the right to public information and the protection of personal data, it emerges that in this specific case the right to the protection of personal data prevails in light of the aforementioned findings of the Authority.

11 See Decision 25/2019 ΑΠΔ, para. 6

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16. Based on the above, the Authority finds that the request of the complainant to the company Google LLC, as the data controller, for the deletion of the links from the search results list in the Google search engine that appear with the search criterion of the complainant's name and surname and contain the content mentioned above in paragraphs 12-15 should be accepted. Therefore, it unanimously decides that the mentioned order in the operative part should be given to the respondent, as the data controller, to delete the links numbered 1 to 10, which are referenced in paragraph 12, and to confirm that they do not appear as a result in the Google search engine with the criterion of the complainant's name and surname, as well as the other links with the same content mentioned in the complaint under consideration, and in the opposite case, to proceed with the deletion of these as well from the search engine results.

FOR THESE REASONS

The Authority:

Orders, in application of the provision of Article 58(2)(c) of Regulation (EU) 2016/679, the company Google LLC, as the data controller, a. to immediately proceed with the removal-deletion of the links mentioned above in paragraph 12 as results with the search criterion of the complainant's name and surname in the Google search engine, and b. to confirm that the other links with the same content mentioned in the complaint under consideration do not appear as a result in the Google search engine with the criterion of the complainant's name and surname, and in the opposite case, to proceed with the deletion of these as well from the search engine results.

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The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou